

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 690

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO THE ATTORNEY GENERAL; AMENDING SECTION 67-1401, IDAHO CODE, TO REMOVE A PROVISION REGARDING SOBRIETY AND DRUG MONITORING PROGRAMS; REPEALING SECTIONS 67-1412 THROUGH 67-1416, IDAHO CODE, RELATING TO SOBRIETY AND DRUG MONITORING PROGRAMS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-1401, Idaho Code, be, and the same is hereby amended to read as follows:

67-1401. DUTIES OF ATTORNEY GENERAL. Except as otherwise provided in this chapter, it is the duty of the attorney general:

(1) To perform all legal services for the state and to represent the state and all departments, agencies, offices, officers, boards, commissions, institutions and other state entities in all courts and before all administrative tribunals or bodies of any nature. Representation shall be provided to those entities exempted pursuant to the provisions of section 67-1406, Idaho Code. Whenever required to attend upon any court or administrative tribunal, the attorney general shall be allowed necessary and actual expenses, all claims for which shall be audited by the state board of examiners.

(2) To advise all departments, agencies, offices, officers, boards, commissions, institutions and other state entities in all matters involving questions of law.

(3) After judgment in any of the causes referred to in this chapter, to direct the issuing of such process as may be necessary to carry the same into execution.

(4) To account for and pay over to the proper officer all moneys received that belong to the state.

(5) To enforce the Idaho charitable solicitation act, chapter 12, title 48, Idaho Code, and the Idaho nonprofit hospital sale or conversion act, chapter 15, title 48, Idaho Code; to supervise charitable organizations, as such term is defined in section 48-1903(4), Idaho Code; and to enforce whenever necessary any noncompliance or departure from the charitable purpose of such charitable organizations as set forth and provided in chapter 19, title 48, Idaho Code.

(6) To give an opinion in writing, without fee, to the legislature or either house thereof or any senator or representative and to the governor, secretary of state, treasurer, state controller, and the superintendent of public instruction, when requested, on any question of law relating to their respective offices. The attorney general shall keep a record of all written opinions rendered by the office and such opinions shall be compiled annually and made available for public inspection. All costs incurred in the prepara-

1 tion of said opinions shall be borne by the office of the attorney general. A
2 copy of the opinions shall be furnished to the supreme court and to the state
3 librarian.

4 (7) When required by the public service, to repair to any county in the
5 state and assist the prosecuting attorney thereof in the discharge of du-
6 ties.

7 (8) To bid on and purchase, when necessary, in the name of the state and
8 under the direction of the state controller, any property offered for sale
9 under execution issued upon judgments in favor of or for the use of the state
10 and to enter satisfaction in whole or in part of such judgments as the consid-
11 eration for such purchases.

12 (9) Whenever the property of a judgment debtor in any judgment men-
13 tioned in subsection (8) of this section has been sold under a prior judg-
14 ment, or is subject to any judgment, lien, or encumbrance, taking precedence
15 of the judgment in favor of the state, under the direction of the state
16 controller, to redeem such property from such prior judgment, lien, or en-
17 cumbrance; and all sums of money necessary for such redemption must, upon the
18 order of the board of examiners, be paid out of any money appropriated for
19 such purposes.

20 (10) When necessary for the collection or enforcement of any judgment
21 hereinbefore mentioned, to institute and prosecute, on behalf of the state,
22 such suits or other proceedings as may be necessary to set aside and annul all
23 conveyances fraudulently made by such judgment debtors; the cost necessary
24 to the prosecution must, when allowed by the board of examiners, be paid out
25 of any appropriations for the prosecution of delinquents.

26 (11) To exercise all the common law power and authority usually apper-
27 taining to the office and to discharge the other duties prescribed by law.

28 (12) To report to the governor the condition of the affairs of the attor-
29 ney general's office and of the reports received from prosecuting attorneys.

30 (13) To appoint deputy attorneys general and special deputy attorneys
31 general and other necessary staff to assist in the performance of the du-
32 ties of the office. Such deputies and staff shall be nonclassified employees
33 within the meaning of section 67-5302, Idaho Code.

34 (14) To establish a medicaid fraud control unit pursuant to the provi-
35 sions of section 56-226, Idaho Code, and to exercise concurrent investiga-
36 tive and prosecutorial authority and responsibility with county prosecutors
37 to prosecute persons for the violation of the criminal provisions of chap-
38 ter 2, title 56, Idaho Code, and for criminal offenses that are not defined in
39 chapter 2, title 56, Idaho Code, but that involve or are directly related to
40 the use of medicaid program funds or services provided through the medicaid
41 program.

42 (15) To seek injunctive and any other appropriate relief as expedi-
43 tiously as possible to preserve the rights and property of the residents
44 of the state of Idaho and to defend as necessary the state of Idaho, its
45 officials, employees, and agents in the event that any law or regulation
46 violating the public policy set forth in the Idaho health freedom act, chap-
47 ter 90, title 39, Idaho Code, is enacted by any government, subdivision, or
48 agency thereof.

49 (16) To establish an internet crimes against children unit (ICAC) pur-
50 suant to the provisions of section 67-1410, Idaho Code, and to exercise con-

1 current investigative and prosecutorial authority and responsibility with
2 county prosecutors to prosecute persons for the violation of the criminal
3 provisions of sections 18-1507, 18-1507A, 18-1507C, 18-1509A, 18-1513 and
4 18-1515, Idaho Code.

5 (17) To respond to allegations of any violation of state criminal law by
6 elected county or city officers acting in their official capacity, to inves-
7 tigate such claims, to issue appropriate findings, and to retain such cases
8 for further investigation and prosecution pursuant to sections 31-2002 and
9 50-238, Idaho Code.

10 ~~(18) To establish a sobriety and drug monitoring program to reduce the~~
11 ~~number of people on Idaho's highways who drive under the influence of alco-~~
12 ~~hol or drugs, to reduce the number of repeat offenders for certain offenses~~
13 ~~in which the abuse of alcohol or drugs was a contributing factor, and to in-~~
14 ~~crease pretrial and posttrial options for prosecutors and judges in respond-~~
15 ~~ing to repeat DUI offenders and offenders for certain crimes in which the~~
16 ~~abuse of alcohol or drugs was a contributing factor in the commission of the~~
17 ~~crime; and to adopt such rules and establish such fees as are necessary for~~
18 ~~the operation of said program, as set forth by law.~~

19 SECTION 2. That Section [67-1412](#), Idaho Code, be, and the same is hereby
20 repealed.

21 SECTION 3. That Section [67-1413](#), Idaho Code, be, and the same is hereby
22 repealed.

23 SECTION 4. That Section [67-1414](#), Idaho Code, be, and the same is hereby
24 repealed.

25 SECTION 5. That Section [67-1415](#), Idaho Code, be, and the same is hereby
26 repealed.

27 SECTION 6. That Section [67-1416](#), Idaho Code, be, and the same is hereby
28 repealed.

29 SECTION 7. An emergency existing therefor, which emergency is hereby
30 declared to exist, this act shall be in full force and effect on and after
31 July 1, 2026.